

HOUSE BILL 2410

By Raper

AN ACT to amend Tennessee Code Annotated, Title 10
and Title 49, relative to special education.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 10, Part 1, is amended by
adding the following as a new section:

(a)

(1) Each LEA and public charter school may install and maintain a video
camera surveillance system in each special education classroom operated by the
LEA or public charter school to promote and protect teacher and student safety.

(2) If an LEA or public charter school installs a video surveillance system
in a special education classroom, then, subject to subsection (b), the LEA or
public charter school shall use the video camera surveillance system to
continuously monitor students, teachers, and staff in the special education
classroom while special education or related services are being provided to
students in the special education classroom.

(b) An LEA or public charter school shall not use a video camera surveillance
system to continuously monitor students, teachers, and staff in a special education
classroom unless the parents of a majority of the students assigned to receive special
education or related services in the special education classroom consent, in writing, to
the parent's student being continuously monitored using the system while they are
receiving special education or related services in the special education classroom.

(c) Photographs or video footage collected from a video camera surveillance system installed in a special education classroom by an LEA or public charter school pursuant to this section may be viewed by:

(1) The parent or legal guardian of a student who is featured in the photograph or recording, but only to the extent that such viewing complies with the requirements of § 10-7-504, the federal Family Educational Rights and Privacy Act (20 U.S.C. § 1232g), or any other relevant or applicable state or federal privacy law; and

(2) A teacher who is featured in the photograph or recording if the teacher believes that the photograph or recording contains evidence of an assault on the teacher, but only to the extent such viewing complies with the requirements of § 10-7-504, the federal Family Educational Rights and Privacy Act (20 U.S.C. § 1232g), or any other relevant or applicable state or federal privacy law.

(d) The local board of education or public charter school governing body for an LEA or public charter school that elects to install a video surveillance system in one (1) or more of its special education classrooms shall adopt a policy to effectuate this section. The policy must establish the duration for which an LEA or public charter school must maintain photographs or video footage collected from a video camera surveillance system installed in a special education classroom.

(e) It is the intent of the general assembly that funding for the installation of video camera surveillance systems in special education classrooms pursuant to this section be funded through any available school safety grants.

(f) As used in this section:

(1) "Parent" means the parent, guardian, person who has custody of the child, or individual who has caregiving authority under § 49-6-3001;

(2) "Special education classroom" means a self-contained classroom or special education setting in which a majority of the students in regular attendance are provided special education and related services for at least fifty percent (50%) of the instructional day; and

(3) "Student" means a student in any of the grades pre-kindergarten through twelve (pre-K-12) who receives special education and related services.

SECTION 2. This act is not an appropriation of funds, and funds must not be obligated or expended pursuant to this act unless the funds are specifically appropriated by the general appropriations act.

SECTION 3. For purposes of developing and adopting policies, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2026, the public welfare requiring it, and applies to the 2026-2027 school year and each school year thereafter.